

संभव Batch

Under Guidance of Vipulendra Tripathi Sir

Polity: Tribunals

1. INTRODUCTION & CONSTITUTIONAL PROVISIONS

Tribunals are quasi-judicial institutions set up to deal with problems such as resolving administrative or tax-related disputes. They perform functions similar to courts but are not strictly bound by the traditional, rigid rules of procedure.

- **Origin:** The original Constitution did not contain provisions for Tribunals. They were added by the **42nd Amendment Act, 1976** upon the recommendation of the Swaran Singh Committee.
- **Part XIV-A:** This new part entitled 'Tribunals' was inserted, containing two core articles:
 - **Article 323A:** Deals with Administrative Tribunals (for public service matters).
 - **Article 323B:** Deals with Tribunals for other matters (taxation, foreign exchange, land reforms, elections, etc.).

2. KEY DIFFERENCES BETWEEN ARTICLE 323A AND 323B

Feature	Article 323A (Administrative)	Article 323B (Other Matters)
Establishment	Can be established only by Parliament .	Can be established by both Parliament and State Legislatures (in their respective legislative competence).
Scope	Restricted to disputes regarding recruitment and conditions of service in public services.	Covers a wide range of subjects like taxation, industrial/labour disputes, rent, tenancy, food stuffs, etc.
Hierarchy	Only one tribunal for the Centre and one for each state (or two/more states). No hierarchy of tribunals.	Allows for the creation of a hierarchy of tribunals (e.g., lower and appellate).

3. PROCEDURE AND POWERS

- Tribunals are **not bound by the rigid procedures** laid down in the Code of Civil Procedure (CPC), 1908 or the Indian Evidence Act.
- They are guided by the **Principles of Natural Justice** (fair hearing, impartiality, equity).
- They enjoy the **powers of a civil court** in respect of summoning witnesses, requiring discovery and production of documents, receiving evidence on affidavits, and examining witnesses on commission.

4. LANDMARK SUPREME COURT JUDGEMENTS

L. Chandra Kumar Case (1997)

The Supreme Court declared the provisions of Articles 323A and 323B, which completely excluded the writ jurisdiction of High Courts (Art 226) and the Supreme Court (Art 32), as **unconstitutional** because judicial review is a part of the "Basic Structure" of the Constitution.

Result: Appeals against the orders of the tribunals no longer go directly to the Supreme Court. They must first be challenged before the **Division Bench of the concerned High Court**.
Tribunals act as supplementary to HCs, not substitutes.

Madras Bar Association Cases (2014, 2020, 2021)

A series of judgements focusing on the **independence of tribunals** from executive control. The SC mandated that the tenure of tribunal members, their appointment through independent Search-cum-Selection Committees, and their service conditions should not be arbitrarily controlled by the government. It heavily stressed the creation of an independent National Tribunals Commission.

5. LIST OF MAJOR TRIBUNALS & THEIR HEADS

1. Central Administrative Tribunal (CAT)

Established: 1985 (Under Administrative Tribunals Act, 1985)

Jurisdiction: Adjudication of disputes regarding recruitment and conditions of service of persons appointed to public services and posts in connection with the affairs of the Union or other local authorities.

FIRST HEAD (CHAIRMAN)

Justice K. Madhavan Reddy

PRESENT HEAD (CURRENT)

Justice Ranjit Vasantrya More

2. National Green Tribunal (NGT)

Established: 2010 (Under National Green Tribunal Act, 2010)

Jurisdiction: Effective and expeditious disposal of cases relating to environmental protection, conservation of forests, and other natural resources.

FIRST HEAD (CHAIRPERSON)

Justice Lokeshwar Singh Panta

PRESENT HEAD (CURRENT)

Justice Prakash Shrivastava

3. Armed Forces Tribunal (AFT)

Established: 2009 (Under Armed Forces Tribunal Act, 2007)

Jurisdiction: Adjudication of disputes and complaints with respect to commission, appointments, enrolment, and conditions of service in respect of persons subject to the Army Act, Navy Act, and Air Force Act.

FIRST HEAD (CHAIRPERSON)

Justice A.K. Mathur

PRESENT HEAD (CURRENT)

Justice Rajendra Menon

4. National Company Law Appellate Tribunal (NCLAT)

Established: 2016 (Under Companies Act, 2013)

Jurisdiction: Hears appeals against the orders of National Company Law Tribunal(s) (NCLT), Insolvency and Bankruptcy Board of India (IBBI), and Competition Commission of India (CCI).

FIRST HEAD (CHAIRPERSON)

Justice S.J. Mukhopadhaya

PRESENT HEAD (CURRENT)

Justice Ashok Bhushan